REVEREND CLEMENT NYATHI
and
THE TRUSTEES FOR THE TIME BEING OF THE APOSTOLIC FAITH MISSION OF AFRICA,
versus
REVEREND ROSEWELL ZULU
and
PATSON HLABANGANA
and
HERBERT KELEB YALALA
and
CLEVER MEMBERE
and
CHIRILELE MUGOYANA
and
APOSTOLIC FAITH MISSION OF AFRICA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 2 April and 14 May 2026

Opposed Application

T. Magwaliba, for the applicant
T. Mpofu with him *Ms N. Zhou*, for the respondents

MAMBARA J:

Introduction

[1] This is an application for leave to sue. Put in the applicant's own terms, the relief sought is leave to file a composite application for condonation and extension of time within which to apply for rescission of the default judgment granted in case number HC 5945/17, together with the substantive rescission application itself.

[2] The application arises against the background of an extant restraint upon the applicant's ability to institute further process without leave. In HC 2406/19, on 29 March 2019, the late PHIRI J struck the urgent matter off the roll and ordered that the applicant was barred from commencing litigation against the respondents in relation to the same dispute without leave of a judge of this court.

[3] The matter was vigorously contested. The parties' positions were sharply polarized on nearly every material issue. It would have been possible to dispose of the matter shortly on the point that the applicant sued deceased persons in their own names. However, given the breadth of the submissions, I consider it necessary to set out the background in some detail before turning to the dispositive question.

Background

[4] The present application was filed on 9 September 2024. The applicant cited the first to fifth respondents by name as trustees for the time being of the sixth respondent, and he explained in his founding affidavit that he cited them as they appeared in the Phiri J judgment which directed him to seek leave to sue.

[5] The consolidated record shows, and the respondents emphasized, that the dispute between the parties did not begin with the present application. The record contains earlier orders and judgments arising from litigation dating back to 2014, including HC 1735/14, HC 2700/14, and the Supreme Court order SC 258/14, in which the applicant or persons aligned with him challenged the removal of certain church officials and related governance steps within the Apostolic Faith Mission of Africa.

[6] In HC 12319/16, Justice Mangota upheld special pleas taken against the plaintiffs and dismissed the action with costs. In the judgment HH 478/17, the court recorded that the plaintiffs had become barred after failing to file heads of argument, that a purported notice of withdrawal filed while they were barred was legally inconsequential, and that the proper course was to proceed to determine the special pleas. The court then held, among other things, that the plaintiffs lacked locus standi and that the matter was res judicata.

[7] The litigation did not end there. In HC 5945/17, proceedings of a similar complexion were again instituted. A special plea was taken, and on 18 October 2017 MANGOTA J upheld the special plea and dismissed the plaintiffs' claim with costs. It is that default judgment which the applicant now wishes, eventually, to rescind.

[8] The record further shows that the applicant, or parties aligned to him, later pursued rescission-related relief in HC 10606/17, and that in HC 2897/18, on 6 April 2018, MUSHORE J dismissed that application with costs. The respondents place considerable reliance on that

order as demonstrating not merely repetition, but the continued recycling of relief that has already failed before courts of competent jurisdiction.

[9] On 18 July 2018, in HB 189/18 under HC 204/18, MABHIKWA J dismissed another application arising from the same ecclesiastical dispute and, after reviewing what the learned judge described as a proliferation of vexatious and repetitive litigation, barred the applicants in that matter from commencing further proceedings against the respondents connected to that dispute without leave of a judge.

[10] Thereafter followed the proceedings in HC 2406/19 before PHIRI J and a further series of unsuccessful attempts in the Supreme Court. The record contains, among others, the judgment of MAVANGIRA JA in SC 187/20 dismissing a reinstatement application with punitive costs, the judgment of KUDYA JA in SC 95/22 refusing condonation, and the judgment of Mavangira JA in SC 206/23 dismissing another condonation application, all of which the respondents say demonstrate the finality that has long attached to the dispute.

[11] Against that already dense background, the present application was launched. Yet by the time it was filed, the record placed before the court showed that the second respondent, Patson Hlabangana, had passed away in December 2023; the third respondent, Herbert Keleb Yalala, had passed away on 30 May 2024; and the fifth respondent, Chirilele Mugoyana, had also since died.

Parties' contentions

[12] The respondents opposed the matter on several fronts. They challenged the form of the application under r 59, raised pleas of res judicata, prescription and lack of locus standi by reference to the earlier judgments, contended that the applicant approached the court with dirty hands in the face of binding court orders, and argued that the citation of deceased respondents rendered the proceedings fatally defective.

[13] In oral argument, *Mr Mpofu* pressed particularly hard on the point that the applicant's own affidavits portrayed him as continuing to act as overseer of the church and to use church contributions to fund litigation, notwithstanding earlier orders and judgments said to have stripped him of any such standing. The respondents also argued that the challenge to HC 5945/17 was hopeless, because the special plea in that matter was founded on issues already

determined in HC 12319/16 and because the relief now contemplated had, in substance, already been overtaken by events and by prior determinations.

[14] The respondents further maintained that the challenge now contemplated to HC 5945/17 was in any event unsustainable because the earlier HC 12319/16 judgment remained extant, because a prior rescission attempt had already failed before MUSHORE J, because the applicant had concealed that development, and because the applicant was once again attempting to re-litigate closed issues through changed procedural clothing.

[15] The applicant's position was the opposite. Through his counsel *Mr Magwaliba* he argued that the present matter was not res judicata because no court had previously determined an application for leave to sue of this kind. He maintained that any departure from the prescribed form caused no prejudice, that the "dirty hands" doctrine could not bar a litigant absent a proper contempt finding, and that the present challenge was aimed at what he described as an erroneously granted default judgment in HC 5945/17.

[16] On the dirty hands point, the applicant said contempt could not be assumed or decided summarily without proper contempt proceedings and proof of the necessary elements. He argued that the Kamocha J order relied upon by the respondents was provisional, qualified, and, in his submission, no longer stood in the way the respondents suggested.

[17] On the intended rescission itself, the applicant argued at length that HC 5945/17 had been erroneously sought and granted. He said there had been no legal duty to replicate to the special plea; that the respondents failed timeously to file heads and to set the special plea down as required by the rules; that the matter had proceeded irregularly while the plaintiffs were barred; and that meaningful prospects existed in the rescission application he wished to bring.

[18] In oral reply, the respondents observed that the applicant had not meaningfully answered the point concerning deceased respondents. They submitted that this point alone disposed of the matter and that the court needed to go no further.

Analysis

[19] The court is not obliged to pronounce on every contentious issue argued by counsel where one anterior point demonstrates that the proceedings are not properly before it. That is especially so where the court is being asked to grant leave to a litigant who is already subject

to a restraint upon further litigation, and where the threshold question concerns the legal competence of the very process placed before the court. In such circumstances, if the process is fundamentally defective, the court ought first to resolve that defect before embarking on the mass of historical and merits issues that counsel debated. The present matter is one such case. The point concerning deceased respondents is anterior, self-contained, and dispositive. Once it is resolved, it is neither necessary nor appropriate to pronounce definitively on every other issue.[1]

[20] On the papers before me and in oral argument, the death of the second, third and fifth respondents was not seriously in dispute. The respondents pleaded the dates of death expressly in the opposition papers. In his answering affidavit, the applicant did not deny those deaths. If anything, he responded by saying that he had cited the respondents as they appeared in the prior order and that the issue of death was technical. In motion proceedings, where a material averment is not traversed, the court is entitled to treat it as admitted. I therefore take the deaths of those respondents as established for present purposes.[2]

[21] Notwithstanding that position, the applicant persisted in citing those respondents in their own names. His explanation in the founding affidavit was that he cited the respondents as they appeared in the Phiri J judgment. That explanation does not avail him. A prior judgment may explain a historical citation in the proceedings then before the court, but it does not confer present legal personality on a person who has since died. Fresh proceedings must be directed against persons or entities capable in law of suing or being sued at the time fresh process is issued.[3]

[22] The governing principle is settled. Zimbabwean law treats the executor or executrix as the legal representative of the deceased estate. The estate does not represent itself, and

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[1]. See Agricultural Bank of Zimbabwe Ltd t/a Agribank v Machingaifa & Anor (SC 61/07, Civil Appeal 11/06) [2008] ZWSC 61 (Supreme Court of Zimbabwe, 17 March 2008); Musungo v Taruwanza (HC 3668/12) [2015] ZWHHC 760 (High Court of Zimbabwe, 25 September 2015); At The Ready Wholesalers (Pvt) Ltd t/a Power Sales v Katsande & Ors (SC 7/03, Civil Application 339/02) [2003] ZWSC 7 (Supreme Court of Zimbabwe, 3 March 2003).

[2]. See Trustees for the Time Being of Cornerstone Trust & 2 Ors v NMB Bank Ltd (97/21) [2021] ZWSC 97 (Supreme Court of Zimbabwe, 24 September 2021) at [104]; Nyamayaro v Albert Chitaunhike N.O. & Anor (700/22) [2022] ZWHHC 700 (High Court of Zimbabwe, 12 October 2022).

[3]. Cf Gariya Safaris (Pvt) Ltd v Van Wyk 1996 (2) ZLR 246 (H) (High Court of Zimbabwe); JDM Agro-Consult & Marketing (Pvt) Ltd v Editor of The Herald Newspaper & Anor (HC 513/06) [2007] ZWHHC 61 (High Court of Zimbabwe, 7 August 2007); Veritas v ZEC & 2 Ors; Firinne Trust also known as Veritas v ZEC & 2 Ors (SC 103/20, Civil Appeal SC 563/18) [2020] ZWSC 103 (Supreme Court of Zimbabwe, 17 July 2020) at [31].

proceedings touching a deceased person's estate must be brought by or against the duly appointed executor. The relevant status is not one of convenience but of legal personality.[4]

[23] The authorities appearing on the record are consonant with that approach. Section 23 of the Administration of Estates Act [*Chapter 6:01*] contemplates administration of deceased estates under letters of administration, while section 25 of the same Act recognizes representation through an executor or executrix. The case law similarly makes clear that citation of the estate itself, or of a deceased person as if still alive, is not a mere semantic defect. It is a nullity from the outset.

[24] I am alive to the fact that in SC 94/23 the Supreme Court said that the irregular citation of deceased respondents in that matter was properly taken but not dispositive there, and that those respondents could be expunged. That decision, however, arose in a different procedural setting. The Supreme Court was dealing with a matter already before it in which the defect was being considered in context. The present case is not of that kind. Here the applicant seeks affirmative leave from this court on fresh process materially directed against persons already dead, without citing any executor, and without having moved any amendment or substitution. This is not a case of mere misdescription of an existing persona. It is a case where the process, as framed, is directed in part against persons who no longer possess legal personality. That is not the same as an amendable misnomer. That is not what is before me.[5]

[25] The defect here is not peripheral. The applicant chose to proceed against "the trustees for the time being" of the sixth respondent and then named, among that very slate, persons who were already deceased. The opposition papers additionally assert that some trustees had passed on and that new office bearers may since have been appointed. If the applicant wished to regularize the matter, elementary procedural steps were available. He could have sought amendment, substitution, joinder, or some properly supported procedural relief directed at

[4]. See Clarke v Barnacle NO & Ors 1958 R&N 358 (SR) (Southern Rhodesia High Court) at 349B–350A; Nyandoro & Anor v Nyandoro & Ors (HC 746/07) [2008] ZWHHC 89 (High Court of Zimbabwe, 15 October 2008); Chiangwa v Katerere & 5 Ors (SC 61/21, Civil Appeal SC 433/19) [2021] ZWSC 61 (Supreme Court of Zimbabwe, 24 May 2021)); Estate Late Ngavaite Jack Chikuni & 2 Ors v Chikuni & 5 Ors (HB 143/21, HC 1919/20) [2021] ZWBHC 143 (Bulawayo High Court, 11 August 2021)

[5]. Compare Mapondera & 55 Ors v Freda Rebecca Gold Mine Holdings Ltd (81/22) [2022] ZWSC 81 (Supreme Court of Zimbabwe, 14 July 2022) at [29]–[33] (mere misdescription of an existing entity may, in appropriate circumstances, be curable) with Veritas v ZEC & 2 Ors; Firinne Trust also known as Veritas v ZEC & 2 Ors (SC 103/20, Civil Appeal SC 563/18) [2020] ZWSC 103 (Supreme Court of Zimbabwe, 17 July 2020) at [28]–[31] and Chituku & 2 Ors v Infrastructure Development Bank of Zimbabwe & 3 Ors (414/21) [2021] ZWHHC 414 (High Court of Zimbabwe, 12 August 2021).

bringing the correct legal personas before the court. He did none of those things. It is not for the court to create or reconstruct competent parties for a litigant.[6]

[26] The position is worsened by persistence after notice. The objection was raised in the opposition. The earlier Supreme Court record had already adverted to the problem of deceased respondents. Yet no amendment, no substitution, and no application for joinder of executors was made. What stands before me is therefore the original, uncorrected process. In my view, that process is materially defective and cannot found the grant of leave sought.

[27] Once that conclusion is reached, the appropriate order is not a merits dismissal. A court does not determine on the merits a process that is legally unsound at inception for having been directed, in part and materially, against deceased persons in their own names. In that sense, there is substance in the respondents' submission that what is before the court is not a competent application for leave capable of adjudication on its broader merits. The matter must therefore be struck off the roll.[7]

[28] Because the parties argued fully, I record that I have considered the remaining questions raised in the papers and in oral submissions: the point under r 59; the contention founded on perpetual silence and dirty hands; the relation between the MABHIKWA and PHIRI JJ orders; the effect of the Supreme Court decisions; the interaction between HC 12319/16 and HC 5945/17; res judicata; prescription; and the alleged prospects in rescission. In light of my finding on the incompetence of the current process, it would be inappropriate to determine those issues before me.

[29] I accordingly refrain from deciding those issues. I say only this. The consolidated record discloses a long, acrimonious and unusually repetitive course of litigation. Any future process that the applicant may elect to bring, if so advised, will have to confront with precision, regularity and full candour the procedural history and the problem of proper parties.

Disposition

In the result, the application is struck off the roll.

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[6]. See Veritas v ZEC & 2 Ors; Firinne Trust also known as Veritas v ZEC & 2 Ors (SC 103/20, Civil Appeal SC 563/18) [2020] ZWSC 103 (Supreme Court of Zimbabwe, 17 July 2020) at [28]–[31]; Chituku & 2 Ors v Infrastructure Development Bank of Zimbabwe & 3 Ors (414/21) [2021] ZWHHC 414 (High Court of Zimbabwe, 12 August 2021); Mzenda v Emirates Airlines & Ors (HC 2710/12) [2015] ZWHHC 775 (High Court of Zimbabwe, 23 September 2015).

[7]. See Musungo v Taruwanza (HC 3668/12) [2015] ZWHHC 760 (High Court of Zimbabwe, 25 September 2015); At The Ready Wholesalers (Pvt) Ltd t/a Power Sales v Katsande & Ors (SC 7/03, Civil Application 339/02) [2003] ZWSC 7 (Supreme Court of Zimbabwe, 3 March 2003); OK Zimbabwe Ltd v Tazvivinga (134/21) [2021] ZWSC 134 (Supreme Court of Zimbabwe, 22 October 2021) at [13].

In light of the basis upon which I have disposed of the matter, and without entering the arena of the many further issues debated before me, there shall be no order as to costs.

MAMBARA J:……

Kossam Ncube & Partners, applicant's legal practitioners
Gill, Godlonton & Gerrans, respondents' legal practitioners